

To Be a *Poseq*

Hakham Ben Şion Me'ir Hai 'Uzziel*

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Translation: Simon Montagu.

As I come to publish this little book, I know that I will be asked whom the work is expected to benefit. The learned Rabbis and Torah scholars of our time have before them hundreds and thousands of works of responsa literature by the rabbis of every previous generation, and they will rightly say “Are you bringing straw to ‘Afarayim?”¹ Or if the general public is the target audience, “anyone inquiring for God’s word will go to the Tent of Meeting”² – to the Bet Midrash of contemporary rabbis who will give them a practical halachic ruling on what is pure or impure, forbidden or permitted, according to the breadth of their understanding and their comprehensive and in-depth knowledge.

On the other hand, I realise that many will criticise what I have written from different perspectives. Some will say “What have the rabbis ever done for us? They have never ruled that the raven is permitted or that the dove is forbidden.”³ This is what lovers of change for its own sake said in earlier generations, and the advocates of reforms in our own time have exactly the same reaction to all compositions that say nothing new but only draw water from the original and eternal spring. Others will criticise me from the opposite perspective: “You were lenient where you should have been strict.”; “You were strict where you

* [Passages in square brackets in the text and footnotes are additions by the translator.]

1 *Menaḥot* 85a [equivalent to the English expression “bringing coals to Newcastle”].

2 [Based on Exodus 33:7.]

3 *Sanhedrin* 99b.

should have been lenient.”; “You were long-winded where you should have been brief.”; “You were concise where you should have gone into detail.”

To all these questions I make the same brief and clear response: “I gain understanding from the elders, since I have observed Your commandments.”⁴ This is what the early sages and elders taught us, when they expounded on the verse “[Let my teaching fall like rain and my words descend like dew,] like showers on the grass”:⁵ “Just as showers fall on the grass and run over them so that they do not rot away, so should you run over the words of the Torah so that you do not forget them. As R. Ya‘acob bar Ḥanina said to Ribbi [Yehuda Ha-Nasi], ‘Let us run over the halachot and prevent them from rusting.’”⁶ This methodology has passed down from one generation to the next, and it is what has brought into being the wealth of halachic writings from every age and from every period, which is not equalled in the legal literature of any other nation on earth.

A Talmudic judge or *poseq* [halachic decisor] can not, and may not, say to himself or to his questioners in response to any question he is asked, “I will take down a book and consult it, and rule according to everything I find already written there.” This is not the way of our teachers: they are required to dig into the source of the halacha, to investigate it thoroughly, refine it, sift it, and clarify it according to comprehensive knowledge, accurate comparisons and correct reasoning, and to reach a true conclusion which is faithful to the halacha. Any one who decides halacha from what he has studied without conducting an independent investigation to understand the halacha in depth is called by our sages a “destroyer of the world”⁷. As the ROSH⁸ wrote, “When two great authorities give opposing halachic rulings, the judge should not say, ‘I

4 [Psalm 119:100.]

5 [Deuteronomy 32:2.]

6 Sifre Ha‘azinu 2.

7 *Soṭa* 22a.

8 [Rabbenu Asher ben Yehi‘el, 1250 or 1259–1327, Franco-Germany and Spain.]

will rule according to the one I prefer'. To do so is committing perjury, and he is only entitled to do so if he is a great sage who has studied and thought the issues through and is capable of deciding in favour of one opinion with clear proofs. In that case, even if another sage has ruled differently, the sage can adduce arguments against his position and differ from him ... all the more so if he has the support of another side in the dispute. If he does not have this level of competence, he is not entitled to make a financial ruling in a disputed case.”⁹

In any case, a *poseq* is required to know and investigate every detail of the halacha from its sources and reasons, to make comparisons, draw conclusions, and infer one thing from another, so that the issues are clear to him. After all this, if he succeeds in coming to a conclusive ruling based on clear knowledge and awareness, he can be satisfied with a job well done.

This process of “halachic give and take,” as it is called, is like the dew from heaven that descends on blades of grass and runs over them, preventing them from rotting or becoming like dried up hay without fresh, vital, and fruitful moisture. This is our obligation: to run over the halachot, teach them orally and in writing, every one according to his own style, his own understanding, his own reasoning, and his own conclusions, and thus to prevent them from rusting and keep them constantly fresh.

Moreover, the conditions of life, changes in values, and technical and scientific discoveries create in every generation new questions and problems that call out for solutions. We cannot ignore these questions and say “Anything new is forbidden by the Torah,” meaning that anything not explicitly mentioned by our predecessors counts as forbidden; still less can we rule leniently according to our own opinion, and neither can we leave the questions vague and undetermined and allow everyone to act as they please. We have the obligation to go into

9 ROSH *Sanhedrin* chapter 4 section 6, see also SA *Hoshen Mishpat* 25:2 in the ReMA.

the halacha in detail and infer the implicit from the explicit, as our Sages said: “When someone is brought to judgement he is asked, ‘Were you trustworthy in business? ... Did you engage in erudite discussions? Did you infer one thing from another?’”¹⁰ They also said things like “This Mishna was taught in the days of Nehemiah the son of Hacaliah”,¹¹ or “This Mishna was taught in the days of Ribbi [Yehuda Ha-Nasi].”¹² In this context too, I say “I gain understanding from the elders, since I have observed Your commandments,” i.e. when I learn from the Torah of the elders and follow in their footsteps, I know that I have observed Your commandments.

This awareness is what has compelled me to investigate most of the questions in this little book and to search for solutions in the teachings of my predecessors. In cases where the outstanding figures of our generations and those that came before us had also discussed these questions, I felt a personal obligation to make my own response according to my limited understanding.

I have not made any innovations, and indeed we are not entitled to make innovations, since even prophets through whom God's spirit speaks and who have His word on their lips are not entitled to make any innovations, as our Sages wrote: “These are the commandments that He commanded Moses”¹³ – this teaches us that no prophet is entitled to make any innovations from that point onwards.”¹⁴ Nor am I establishing halacha for future generations, since studying texts and determining the halacha that they lay down depends not on wisdom but on Divine assistance.¹⁵ Our sages also interpreted the expression

¹⁰ *Shabbat* 31a.

¹¹ *Shabbat* 123b.

¹² *Baba Qama* 94b, and *Tosafot* s.v. בִּימֵי. [In both cases the Gemara's point is that these teachings only applied in the generation that they were stated, and were not intended to be established halacha.]

¹³ *Leviticus* 27:34.

¹⁴ *Shabbat* 104a.

¹⁵ *Megilla* 6b.

“God is with him”¹⁶ as meaning “halacha follows his opinion in every case”.¹⁷ In all my responsa my intention has not been to be lenient or stringent on the basis of my own opinion or my own determination: my purpose has been to seek for and discover the truth. As far as my understanding reaches I have followed the light cast by our earlier teachers, whose waters we drink and whose light illuminates us. I have lit up my eyes with this sacred light, whose source is in the hidden and secret light [of the first day of Creation]. I have approached each question in all its details with reverence for holiness and respect for truth, with a profound prayer on my lips taken from the words of our Rabbis of blessed memory: “May it be Your will that what I say will be accepted.”¹⁸

In all my responsa I have avoided as far as possible erudite discussion, raising and answering hair-splitting problems that do not affect the bottom line of the halacha. Although we are familiar with the rabbinic saying that “God rejoices in erudite discussions of Torah,” I prefer to rely on the Sages’ statement¹⁹ which juxtaposes praise of erudite discussion and of drawing logical inferences, and to conclude from it that erudite discussion is valuable and desirable – if it is used for the purpose of drawing inferences to support the correct halachic conclusion.

This has always been my methodology in my writings: to investigate, examine and explain the words of our predecessors in order to reach a halachic conclusion.

I have endeavoured to write clearly, relying on the reader to check my sources and determine the truth and correctness of my interpretation. Furthermore, I have divided every question into sections and subsections and investigated each subsection individually so that every reader of this book who is not satisfied with the conclusions of a

16 [I Samuel 16:18, referring to David.]

17 *Sanhedrin* 93a.

18 *Beša* 38a.

19 [Quoted above, footnote 10.]

responsum as a whole, will be able to check the details of each subsection and perhaps gain benefit from this study.

Here I feel an obligation to make a general observation: the responsa of mine in this little book are only a suggestion of investigation into the halacha, not practical halachic rulings, neither lasting nor immediate. The Torah does not permit anyone to make definitive determinations of halachic questions, except for the Supreme Bet Din, or an assembly of the great rabbis of each generation who gather to determine halacha, debate the questions and follow the decision of the majority by mutual consent. Only such a Bet Din has the authority to make halachic rulings that will obligate an entire generation.²⁰

In particular I would like to comment here on what I wrote in my responsum (*Orah Hayyim* 9) on the question of riding in steam- or electric-powered carriages on Shabbat. I wish to clarify that that responsum was written to a questioner from outside Israel, where it is not the case that public transport is operated for Jews. However, in the land of Israel our community is growing and spreading throughout the country, and all methods of transport used by non-Jews and operated by non-Jews only exist in order to serve the Jewish community, who are the principal customers of commercial transport throughout the country. Here there is no way to permit Jews to travel by train or bus, even if the drivers are not Jewish and even if most, or even all, of the passengers are not Jewish, since the main reason that all these forms of transport exist is for the benefit of the Jews.

Before I conclude, I also feel an obligation to mention at the beginning of my book the pleasant and beloved memory of my friend and colleague the distinguished and saintly rabbi Shelomo Hacohen Aharonson of blessed memory, the chief rabbi of Tel Aviv and environs, who passed away on 21 Adar Sheni 5795 before he fulfilled the wish that

²⁰ See RaMBaM *Mishne Tora Hilchot Mamrim* 1:5 and 5:1, and the SHaCH's essay on halachic procedural rules [הנהגות הוראות אסור והיתר] in his notes on *Shulhan 'Arukh Yore De'a* 242.

he expressed to me several times, of writing an introduction to this book. May his memory be a blessing and may his soul attain eternal life. After this brief introduction, I present my little book for the perusal of my masters and teachers, the distinguished rabbis and their students, and to the general public. I give thanks and blessings to those who praise my work, and I pray to God, my strength and fortress, saying "May I dwell in your tents for ever, Master of the Universe! May it be your will that people quote my teachings in this world."²¹ If I merit this, it will be the greatest reward I can ask for.

Finally, I express my thanks and deep appreciation to the community of Jaffa and Tel Aviv and all the adjacent communities for their great generosity in appointing me to the position that I hold in peace and tranquility. May God be with you, honoured and illustrious communities, and may He grant you success in all your endeavours to spread our settlement into every corner of the land, to raise the reputation of the Torah of Israel and the Nation of Israel in the land of their ancestral heritage, and may we all behold the redemption of the Jewish people from the lands of its dispersion and its permanent establishment in the land of its ancestral heritage, and the fulfilment of God's purpose as spoken by his prophet: "Many peoples will come and say, 'Come, let us go up to the mountain of the LORD, to the temple of the God of Jacob. He will teach us his ways, so that we may walk in his paths.' The law will go out from Zion, the word of the LORD from Jerusalem."²²

I pray in expectation

Of Israel's salvation

*And rebuilding Ariel*²³

Ben Şion Me'ir Hai 'Uzziel

²¹ *Yebamot* 97a.

²² Isaiah 2:3; Micah 4:2.

²³ [Jerusalem, see Isaiah 29:1-7]